

Law of Equity and Trusts (EQT1)

Module 1: Foundations of Equity

Lesson 2: The Maxims of Equity

Lesson Notes

KMVTECHUG

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What Are Maxims of Equity?

The maxims of Equity are short, traditional statements of principle that guide how equitable jurisdiction is exercised. They are not rigid statutes. They are tools of reasoning that help courts decide when Equity should intervene and on what terms.

You do not need to memorise every historical formulation. You do need to understand the main maxims well enough to apply them to facts and to recognise them in judgments.

Key idea: Maxims are guides to conscience-based decision-making. Use them to structure analysis, not as mechanical rules.

Core Maxims You Must Know

Equity follows the law

Equity does not needlessly contradict the common law. It intervenes where the law is inadequate or would produce injustice, but it respects established legal rights.

Equity will not suffer a wrong to be without a remedy

Where there is a right, there should be a remedy. This underpins injunctions, specific performance and other equitable relief.

He who seeks equity must do equity

A claimant who wants equitable relief must be prepared to act fairly towards the defendant. Relief may be conditional on doing justice on both sides.

He who comes to equity must come with clean hands

A claimant who has acted improperly in relation to the subject matter may be refused equitable relief.

Further Important Maxims

Delay defeats equities (equity aids the vigilant)

Unreasonable delay in seeking equitable relief can bar the claim (laches). Equity expects claimants to act promptly.

Equity looks to the intent rather than the form

Substance prevails over technical form. This aligns with Article 126(2)(e) of the Constitution.

Equity acts in personam

Equitable remedies primarily bind the conscience of the person.

Equality is equity

Where possible, Equity prefers equal division rather than arbitrary preference.

Equity imputes an intention to fulfil an obligation

Where a person is obliged to do something and does an act that can be construed as performance, Equity may treat it as such.

Reflect: Which maxim would you invoke if a claimant waited many years, without explanation, before seeking an injunction?

Using Maxims in Problem Questions

Do not list maxims for their own sake. Select the maxim that genuinely illuminates the dispute. Explain briefly what it means, then apply it to the facts. Link it to any relevant statute.

Example: A buyer seeks specific performance of a land contract but has refused to pay the agreed instalments. The maxims “he who seeks equity must do equity” and clean hands both support a refusal, or strict conditions.

Maxims and Ugandan Practice

Ugandan courts draw on these principles when exercising equitable jurisdiction. The constitutional command to do justice without undue regard to technicalities reinforces maxims that favour substance over form. Always check how a maxim interacts with statute — especially Cap 240 in land cases and Cap 270 in trust disputes.

Key idea: Maxims are persuasive tools. Statute and binding authority come first; maxims help you argue how discretion should be exercised.

Key Takeaways

- Maxims guide the exercise of equitable discretion; they are not rigid rules.
- Master clean hands, delay, substance over form, and “do equity” first.
- Always apply maxims to facts; never recite them in the abstract.
- Connect maxims to the Judicature Act Cap 16 and Article 126(2)(e) where relevant.

Quick Revision Checklist

- ☐ I can explain what maxims are and what they are not.
- ☐ I can state and briefly illustrate at least six core maxims.
- ☐ I can apply clean hands and delay to a short fact pattern.
- ☐ I can link “intent rather than form” to Article 126(2)(e).
- ☐ I know that maxims guide discretion and do not override statute.

Bridge to the Next Lesson

Having established the nature of Equity and the maxims that guide it, the next lesson turns to concurrent administration in more depth and how Ugandan courts structure the relationship between legal and equitable rights.